



George Kaufman
Partner, Head of Investment Banking

Chardan Capital Markets, LLC
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Preliminary: Subject to Legal Review and Commitment Committee Approval

March 8, 2024

Instinct Brothers Holdings
West Side Gotanda Building, Level 3, 6-2-7,
Nishi Gotanda, Shinagawa City,
Tokyo, Japan

Attn: Mr. Tomoki Nagano
CC: Mr. Masashi Ohmatsu

Re: M&A/Capital Markets Advisory Agreement

Mr. Tomoki Nagano,

This letter agreement (this "Agreement") will confirm our understanding that the company known to us as Instinct Brothers Holdings (together with its current or future affiliates, successors and assigns, the "Company") has engaged Chardan Capital Markets, LLC ("Chardan") to act as exclusive Merger and Acquisition and Capital Markets Advisor with respect to a potential sale, purchase, merger, joint venture, business combination, material change of control, or similar transaction involving the Company and a strategic acquirer and/or private or publicly listed entity or business, including a Special Purpose Acquisition Company (SPAC) (a "Transaction"), and with respect to any offerings of any equity, equity-linked or debt securities of the Company or any other party to a Transaction (a "Financing"). Any individual and/or entity, along with any of their current or future affiliates or successors, involved in a Transaction, shall be deemed a "Counterparty". The specific terms and conditions of the Transactions shall be determined by good faith negotiations between the Company, its shareholders (if applicable) and the relevant Counterparty (or Counterparties). References herein to "Company", "Public Company", "Public Companies", "Counterparty", and "Counterparties" include any current or future affiliates, successors and assignees of such entities.

Section 1. Scope of Engagement and Services. In connection with this engagement, Chardan shall, as appropriate:

- (a) Familiarize itself to the extent appropriate and feasible with the business, operations, financial condition, and prospects of the Company;
- (b) advise and assist the Company in negotiating the terms and conditions of the above defined or other transactions;

- (c) introduce the Company to publicly listed or private entities or businesses, and/or potential investors and business partners, by identifying, providing contacts or contact information, arranging communications with or contacting such parties;
- (d) perform such other financial advisory services as Chardan and the Company may from time to time agree upon;
- (e) engage additional broker-dealers ("Selected Sub-Advisors or Dealers"), upon the Company's prior written consent, which shall not be unreasonably withheld, who are licensed members of FINRA and registered as broker dealers with the Securities and Exchange Commission. Such Selected Sub-Advisors or Dealers may be engaged by Chardan pursuant to selected dealer agreements and shall receive a portion of the Financing Fee (but no additional fee from the Company) pursuant to such agreements. Chardan shall ensure that its actions and the actions of any Selected Sub-Advisors or Dealer comply with applicable securities laws and do not cause the Company to be unable to rely upon any exemption from securities registration in connection with any Financing.

The parties agree that any fees paid in accordance with this Agreement relate solely to the scope of work described in this Agreement and are not being paid in connection with any public equity underwriting on behalf of the Company. Should the Transactions involve a public equity underwriting, the Company and Chardan will enter into a definitive underwriting agreement containing customary terms and conditions.

Section 2. Compensation.

- (a) M&A Fee: In the event a Transaction is consummated, the Company shall pay to Chardan at the closing of the Transaction the "M&A Fee" specified in Exhibit B, which shall be paid by the Company to Chardan in immediately available funds from the flow-of-funds at the closing of the Transaction; provided, however, that if the Transaction occurs through multiple closings, then a pro rata portion of such fees shall be paid upon each closing.

If Exhibit B specifies that the M&A Fee is to be based on the "Aggregate Value" of the Transaction, such term means an amount equal to the sum of the aggregate fair market value of any securities issued and any other cash and non-cash consideration delivered and paid in connection with a Transaction, and the amount of all debt and any other liabilities of the Company (or, as applicable of the Counterparty or Counterparties to the Transaction) immediately prior to closing that (a) are assumed or acquired by one or more Counterparties to the Transaction (or by the Company) or (b) are redeemed, repaid, retired or defeased in connection with such Transaction.

Aggregate Value includes any additional consideration paid or to be paid (as defined above) in any steps subsequent to the initial closing including payments in accordance with promissory notes delivered to the Counterparties in connection with a Transaction, and any consideration in any form ("Contingent Payments") received or receivable by the Counterparties, their affiliates or any of their employees (other than customary annual or other regularly paid periodic compensation) or any of their former or current stockholders or investors, where the payment is contingent or may be modified based on developments from and after the initial closing of the Transaction, such as purchase price adjustments based on adjustments to financial statements, deferred performance-based payments, earn-outs, indemnity holdbacks or payments based on tax savings. The fair market value of any securities issued and any other non-cash consideration delivered or retained in connection with a Transaction will be determined upon closing of the Transaction jointly by Chardan and the Company.

The M&A Fee relates solely to the scope of work related to supporting the Transaction and in not being paid in connection with any other Transactions.

- (b) Capital Markets Advisory. In the event a Financing is consummated during the term of this Agreement, the Company will pay to the Chardan an aggregate fee (the "Financing Fee") set forth in **Exhibit B** at the close of the Financing in immediately available funds; provided, however, if such financing occurs through multiple closings, then a pro rata portion of such fees shall be paid upon each closing.

The Financing Fee relates solely to the scope of work related to supporting the applicable Financing and is not being paid in connection with any other Transaction.

- (c) Tail Period. Even if a Transaction is not consummated prior to the expiration or termination of this Agreement, Chardan shall be entitled to the full M&A Fee and Financing Fee set forth in Sections 2(a) and 2(b) and Exhibit B with respect to any Transaction that occurs within eighteen (18) months of the expiration or termination of this Agreement.

Section 3. Indemnification. The Company agrees to indemnify the Indemnified Parties (as defined in Exhibit A) in accordance with the provisions of **Exhibit A** hereto, which is incorporated by reference and made a part hereof.

Section 4. Expenses. The Company shall reimburse Chardan for all of its actual and reasonable out-of-pocket expenses, including but not limited to reasonable and documented travel, legal fees and other expenses, incurred in connection with this Agreement, whether or not a Transaction is consummated. Chardan must present reasonably appropriate documentation evidencing such expenses in order to receive reimbursement. Reimbursable expenses are also subject to the additional limits set forth in Exhibit B. Notwithstanding the foregoing, the expense reimbursement related to Chardan's out-of-pocket expenses (including costs of retaining counsel) for conducting underwriters' style diligence as contemplated by Section 7(b) will survive Termination (as defined below). The Company will bear all of its legal, accounting, printing or other expenses in connection with any transaction considered or consummated hereby. It also is understood that Chardan will not be responsible for any fees or commissions payable to any finder or to any other financial or other advisor utilized or retained by the Company (it being understood by the parties that Chardan, and not the Company, shall be responsible for the payment of any fees, if any, due and owing to any Selected Sub-Advisors and/or Dealers (as defined below) it engages for the purpose of marketing to institutional investors.

Section 5. Chardan's Relationships with Others. The Company acknowledges (a) that Chardan and its affiliates (including ATW Partners, LLC) are in the business of providing investment banking, financial advisory, underwriting, lending, financing and consulting services to publicly-listed and private companies, including SPACs, and others entities or persons (including potential Counterparties), including those that may seek to acquire, combine with or invest in the Company or that otherwise have a relationship with the Company and (b) that Chardan and its affiliates and its and their officers and directors regularly engage – whether as a sponsor, other investor, advisor, or placement agent of a SPAC, by having its personnel serve as officers or directors of a SPAC, or otherwise – in business activities relating to SPACs and other companies (and their investors), including those that may compete in the Company's industry or that may be potential or actual Counterparties. In connection with marketing those services or engaging in those activities, Chardan and its affiliates may maintain active dialogues with other participants in any Transactions, may review and contribute to analyses of, or potential transactions involving, the Company or potential Counterparties and may acquire from third parties non-public information related to a Transaction or other entities and persons. Chardan and its affiliates shall have no obligation to disclose such information (or the fact that Chardan or its affiliates are in possession of such information) to the Company or to use such information on the Company's behalf. Except as set forth in the last sentence of this Section 5, nothing contained herein shall be construed to limit or restrict Chardan or its affiliates in

conducting such businesses with respect to others, in rendering such services to others, or engaging in business activities that are beyond the scope of this Agreement, such as investments in or acquisitions of entities for other clients or for itself or its affiliates as principal. Chardan acknowledges and agrees that nothing in this Section 5 modifies its obligations relating to the Company's Confidential Material as provided in Section 6 hereof; further, Chardan agrees that it will disclose to the Company any existence of a principal position in a party with an interest in a potential Transaction upon becoming aware that either such other party or the Company has made an offer to the other related to that potential Transaction.

Section 6. Confidential Information. In connection with the rendering of services hereunder, Chardan has been or will be furnished with certain confidential information of the Company including, but not limited to, financial statements and information, cost and expense data, scientific data, intellectual property, trade secrets, business strategies, marketing and customer data, and such other information not generally available from public or published information sources. Such information shall be deemed "Confidential Material", shall be used solely in connection with the provision of services contemplated hereby, and may only be disclosed by Chardan in connection with a Transaction (or a potential Transaction) pursuant to Section 11 hereof, to comply with regulatory requests or requirements and, in other cases, only with the prior written consent of the Company. In the event Chardan is required by applicable law or legal process to disclose any of the Confidential Material, Chardan will deliver to the Company prompt notice of such requirement (by fax or overnight courier promptly following Chardan's knowledge or determination of such requirement) prior to such disclosure so the Company may seek an appropriate protective order and/or waive compliance of this provision. If, in the absence of a protective order (because the Company elected to not seek such an order or it was denied by a court of competent jurisdiction) or receipt of written waiver, Chardan is nonetheless, in the written opinion of its counsel, compelled to disclose any Confidential Material, Chardan may do so without liability hereunder.

Section 7. Limitation Upon the Use of Advice and Services.

- (a) No person or entity, other than the Company (including its directors, officers and employees), shall be entitled to make use of, or rely upon any advice of Chardan to be given hereunder, and the Company shall not transmit such advice to, or encourage or facilitate the use or reliance upon such advice by others without the prior written consent of Chardan. The advice and assistance being provided under this Agreement are being provided solely to the Company's current management, but not to its current (or prospective) shareholders or investors.
- (b) The Company hereby acknowledges that Chardan makes no commitment hereunder whatsoever to make a market in any securities on any stock exchange or in any electronic marketplace. Any decision by Chardan to make a market in any of the Company's securities shall be based solely on the independent judgment of Chardan's management, employees, and agents. In the event that a Transaction involves a SPAC and/or any other publicly-listed company (either, a "Public Company" or "Public Companies"), the Company agrees to cooperate with (and use its reasonable efforts to cause the Public Company to cooperate with) Chardan's efforts: (1) to perform diligence on the Transactions (including of the Company and the Public Companies), and any other matters in prospectuses, registration statements, proxy statements and any other information or disclosure materials provided to current or prospective shareholders or investors related to any of the Transactions (together with any amendments or supplements thereto, the "Investor Materials") and (2) to receive materials typical for supporting an investment bank's due diligence efforts, including: (A) "comfort" letters relating to the financial and share information contained or incorporated by reference into an Investor Materials, (B) opinions and negative assurance statements relating to the Investor Materials provided to any party in connection with the Transactions and as Chardan and its counsel may reasonably request, dated on such dates and in such form and substance as Chardan

reasonably requests; and (C) officers' certificates with respect to the Investor Materials and the financial information contained therein. The Company shall provide, in its transaction agreement with Public Companies to the Transaction, for those Counterparties to provide with materials (including from its independent registered public accounting firm(s) and counsel) corresponding to those described in the foregoing sentence. In the event that Chardan determines that its diligence is unsatisfactory for any reason, Chardan will have the right to terminate this Agreement with respect to any or all of the Transactions, effective on written notice. The Company agrees, at the request of Chardan, to include disclosure, in a form reasonably acceptable to Chardan, in any Investor Materials that: (a) to the extent applicable, Chardan is not involved in any capacity in the consummation of one or more of the Transactions and (b) that Chardan has not made any assessment of the Transactions or the adequacy or accuracy of the applicable Investor Materials.

- (c) Use of Chardan's name in annual reports or any other report of, or releases by, the Company (or any Public Companies) requires the prior written approval of Chardan unless the Company is required by law to include Chardan's name in such annual reports, other report or release of the Company, in which event the Company shall furnish to Chardan copies of such annual reports or other reports or releases using Chardan's names in advance of publication by the Company.

Section 8. Public Announcements. The Company agrees to include references to Chardan's role hereunder (including, in the event that Chardan terminates this engagement pursuant to Section 7(b), its lack of involvement in or appraisal of the Transactions) in any press releases regarding the Transactions and activities related thereto. Chardan will have the right to review and approve such press releases prior to publication; provided that such approval is not unreasonably withheld. The Company acknowledges that Chardan may place announcements or advertisements or otherwise publicize Chardan's role hereunder.

Section 9. No Conflicts with Finders or Other Brokers. The Company represents that this Agreement does not conflict with any other finder or broker agreement entered into by Company, and that if another person or entity is entitled to payment by Company of a finder's fee or any type of brokerage commission in connection with any Transactions as a result of any agreement or understanding with the Company, this will not reduce Company's obligations to Chardan hereunder.

Section 10. Future Transactions. Chardan shall have a right (but not an obligation) of first refusal to act (a) as sole/lead left/lead book-running manager (with at least 30% of the economics paid to all advisors and/or underwriters) for any and all Future Financings undertaken until the eighteenth (18th) month anniversary of the date of the closing of the Transaction and (b) as sole/lead left financial advisor with respect to any and all M&A Transactions during such period. If Chardan elects to provide any such additional services, separate agreements will be executed containing customary terms and conditions, including appropriate indemnification, post-termination rights (including with respect to future transactions involving the Company, including its affiliates and any successors), fees and publicity provisions based on the prevailing market for similar services for global, full-service investment banks. As used in this Section 10, "Future Financings" means any and all future public and private equity and debt offerings by the Company and "M&A Transactions" means any and all sales or other dispositions of a significant portion of the equity securities, assets or businesses of the Company (including any successors, subsidiaries and affiliates thereof), and any and all material purchases or other acquisitions of the equity or assets or businesses of a third party by the Company (including any successors, subsidiaries and affiliates thereof).

Section 11. Information; Investor Materials; Cooperation. The Company will cooperate with and will furnish Chardan with all reasonable information and data concerning the Company, the Counterparties, the Transactions and the Investor Materials that Chardan deems appropriate and will provide Chardan with reasonable access to the Company's (and will undertake reasonable efforts to

facilitate Chardan's access to the Counterparties') officers, directors, employees, independent accountants and legal counsel. The Company represents and warrants that all Investor Materials will be complete and correct in all material respects and will not contain any untrue statement of material fact or omit to state a material fact necessary in order to make the statements therein not misleading in light of the circumstances under which such statements are made. The Company further represents and warrants that to the extent any projections are furnished, such projections will have been prepared in good faith and will be based upon assumptions, that are reasonable in light of the circumstances under which they are made or used and, if the projections are included in any Investor Materials, that they have been adequately and fairly disclosed to those persons (including entities) receiving them. The Company will advise Chardan immediately of any change or development resulting in any of the representations in the two preceding sentences being no longer accurate. The Company acknowledges and agrees that Chardan, in performing the services hereunder, will be relying primarily on the information in the Investor Materials and assumes no responsibility for the accuracy and completeness of the Information Materials. The Company shall give Chardan reasonable advance opportunity to comment and review on all drafts of Investor Materials and to conduct appropriate diligence to verify the disclosure in the Investor Materials. Chardan shall not deliver, and shall instruct any and all of its Selected Sub-Advisors and/or Dealers not to deliver, to any prospective Counterparties any Investor Materials or other information concerning the Company, unless the Company has previously consented to the distribution of such information.

Section 12. Miscellaneous.

- (a) Any notice or communication between the parties hereto shall be sufficiently given if sent by certified or registered mail, postage prepaid, or faxed and confirmed if to the Company, addressed to it at the address above, or if to Chardan, addressed to them at: 17 State Street, Suite 2130, New York, NY, 10004. Such notice or other communication shall be deemed to be given on the date of receipt.
- (b) This Agreement embodies the entire agreement and understanding between the Company and Chardan and supersedes any and all negotiations, prior discussions and preliminary and prior agreements and understandings that Chardan may have had with the Company related to the subject matter hereof, and may be modified only by a written instrument duly executed by each party. This Agreement shall inure to the benefit of and be binding upon the successors, assigns and personal representatives of each of the parties hereto. This Agreement has been duly authorized, executed and delivered by and on behalf of the Company and Chardan.
- (c) This Agreement shall be deemed to have been made and delivered in New York City and shall be governed as to validity, interpretation, construction, effect and in all other respects by the internal laws of the State of New York without regard to principles of conflicts of law thereof. Any and all disputes, controversies or claims arising out of or relating to this Agreement, or the breach, termination or invalidity thereof, shall be finally and exclusively resolved by arbitration in accordance with the Rules of FINRA as at present in force. The arbitration shall take place in New York City, the State of New York. The parties hereby submit themselves to the exclusive jurisdiction of the arbitration tribunal in the City of New York, the State of New York under the auspices of FINRA. To the extent permitted by law, the award of the arbitrators may include, without limitation, one or more of the following: a monetary award, a declaration of rights, an order of specific performance, an injunction, reformation of the contract. The decision of the arbitrators shall be final and binding upon the parties hereto, and judgment on the award may be entered in any court having jurisdiction over the subject matter thereof. Each party to the arbitration shall bear its own expenses of the arbitration (including without limitation reasonable fees and expenses of counsel, experts and consultants).

- (d) There is no relationship of partnership, agency, employment, franchise or joint venture between the parties. No party has the authority to bind the other or incur any obligation on the other's behalf.
- (e) The Company hereby acknowledges that Chardan has been retained hereunder solely as an independent contractor and that nothing in this Agreement or the nature of Chardan's services shall be deemed to create a fiduciary or agency relationship between Chardan and the Company (or any of the Counterparties) and its (or their) board of directors, equity holders, employees or creditors. Chardan is not undertaking to provide any legal, accounting or tax advice in connection with its engagement under this Agreement, and Chardan's role in any due diligence will be limited solely to performing such review as it shall deem necessary to support its own services and shall not be on behalf of the Company or any Counterparties. Chardan makes no representations or warranties regarding the Company's ability to secure financing, whether now or in the future.
- (f) Except with respect to Indemnified Persons under Section 3 and **Exhibit A**, this Agreement is intended only for the benefit of the parties hereto and their respective successors, and is not for the benefit of, nor may any provision hereof be enforced by, any other Person. This Agreement and the rights hereunder may not be assigned by either party (except by operation of law).
- (g) Any term or provision of this Agreement which is invalid or unenforceable in any jurisdiction shall, as to that jurisdiction, be ineffective to the extent of such invalidity or unenforceability without rendering invalid or unenforceable the remaining terms and provisions of this Agreement or affecting the validity or enforceability of any of the terms or provisions of this Agreement in any other jurisdiction. If any provision of this Agreement is so broad as to be unenforceable, the provision shall be interpreted to be only as broad as is enforceable.
- (h) Any outstanding amounts payable under this Agreement will incur a late-fee charge of three percent (3%) per month that such amounts remain outstanding from the date on which they are due.

Section 13. Termination. The term (the "Term") of Chardan's engagement hereunder shall commence on the date hereof and shall end immediately following the final closing of the Transactions; provided however that this Agreement can be terminated before then by either party upon forty-five (45) days written notice of termination for any reason or by Chardan as specified in Section 7(b) (addressing Chardan's diligence rights with respect to the Transactions).

Upon the Agreement's expiration or termination, Section 2(c) ("Compensation-Tail Period"), Section 3 ("Indemnification"), Section 4 ("Expenses"), Section 5 ("Chardan's Relationship with Others"), Section 6 ("Confidential Information"), Section 7(c), Section 8 (Public Announcements), Section 10 ("Future Transactions") and Section 12 ("Miscellaneous") will survive. Notwithstanding the foregoing sentence, Section 2(c) ("Compensation-Tail Period") will not survive a termination by Chardan pursuant to Section 7(b) (addressing Chardan's diligence rights with respect to the Transactions).

Signature page follows



We are delighted to accept this engagement and look forward to working with you on this assignment. Please confirm that the foregoing is in accordance with your understanding by signing and returning to us one copy of this enclosed duplicate of this agreement.

Very truly yours,

CHARDAN CAPITAL MARKETS LLC

By: _____
George Kaufman
Partner, Head of Investment Banking

Agreed to and accepted this ___ day of February, 2024

INSTINCT BROTHERS HOLDINGS

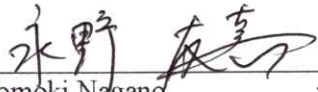
By:  _____
Tomoki Nagano
Chief Executive Officer

Exhibit A

INDEMNIFICATION

The Company agrees to indemnify and hold harmless Chardan and its affiliates and their respective officers, directors, employees, agents and controlling persons (each such indemnified party or person being an "Indemnified Party"), from and against any losses, claims, damages and liabilities, joint or several, to which such Indemnified Party may become subject under any applicable law, or otherwise, which relate to or arise in any manner out of any transaction, financing, any actual or alleged untrue statements of fact or material omissions of fact in any Investor Materials, or any other matter (collectively, the "Matters") contemplated by the Agreement of which this **Exhibit A** forms a part, and the performance by Chardan of the services contemplated thereby, and will promptly reimburse each Indemnified Party for all reasonable expenses (including reasonable fees and expenses of legal counsel) as incurred in connection with the investigation of, preparation for or defense of any pending or threatened claim or any action or proceeding arising therefrom, whether or not such Indemnified Party is a party and whether or not such claim, action or proceeding is initiated or brought by or on behalf of the Company. Notwithstanding the foregoing, the Company shall not be liable under the foregoing to the extent that any loss, claim, damage, liability or expense is found in a final judgment by a court of competent jurisdiction to have resulted solely from Chardan's gross negligence or willful misconduct.

The Company also agrees that no Indemnified Party shall have any liability (whether direct or indirect, in contract or tort or otherwise to the Company or its security holders or creditors) related to, arising out of, or in connection with, any Matters, the engagement of Chardan pursuant to, or the performance by Chardan of the services contemplated by, the Agreement of which this **Exhibit A** forms a part, except to the extent any loss, claim, damage or liability is found in a final judgment by a court of competent jurisdiction to have resulted solely from Chardan's gross negligence or willful misconduct.

If the indemnification of an Indemnified Party provided for in this **Exhibit A** is for any reason held unenforceable, although otherwise applicable in accordance with its terms, the Company agrees to contribute to the losses, claims, damages and liabilities for which such indemnification is held unenforceable (i) in such proportion as is appropriate to reflect the relative benefits to the Company, on the one hand, and Chardan, on the other hand, of any Matter (whether or not the Matter is consummated) or (ii) if (but only if) the allocation provided for in clause (i) is for any reason held unenforceable, in such proportion as is appropriate to reflect not only the relative benefits referred to in clause (i) but also the relative fault of the Company, on the one hand, and Chardan, on the other hand, as well as any other relevant equitable considerations. The Company agrees that for the purposes of this paragraph the relative benefits to the Company and Chardan of any contemplated Matter (whether or not such Matter is consummated) shall be deemed to be in the same proportion that the total value paid or received or to be paid or received by the Company as a result of or in connection with any Matter, bears to the fees paid or to be paid to Chardan under the Agreement; provided, however, that, to the extent permitted by applicable law, in no event shall the Indemnified Parties be required to contribute an aggregate amount in excess of the aggregate fees actually paid to Chardan under the Agreement of which this **Exhibit A** is a part.

Promptly after receipt by Chardan or any other Indemnified Party of any notice of any proceeding, or the commencement of any legal action or proceeding in respect of which indemnity may be sought against the Company, Chardan or such other Indemnified Party shall notify the Company promptly in writing of the receipt of any such notice or commencement of such an action or proceeding. In the event the Company shall be obligated under this **Exhibit A** to indemnify Chardan and/or such other Indemnified Party, the Company may assume and control all aspects of the defense of such proceeding, including, *inter alia*, selection of counsel (which counsel shall be reasonably acceptable to Chardan) and, subject to the next paragraph, settlement; provided, however, that the Indemnified Parties shall have the right to retain separate counsel, but the fees and expenses of such counsel shall be at the expense of the Indemnified Parties, unless (i) the employment of such counsel has been specifically authorized in writing by the Company, (ii) the

Company has failed to assume and pursue the defense and employ reasonably acceptable counsel as required above, or (iii) the named parties to any such action (including any impleaded parties) include both (a) the Indemnified Parties and (b) the Company, and the Indemnified Parties shall have reasonably determined that the defenses available to them are not available to the Company and/or may not be consistent with the best interests of the Company or the Indemnified Parties (in which case the Company shall not have the right to assume the defense of such action on behalf of the Indemnified Parties); it being understood, however, that the Company shall not, in connection with any one such action or separate, substantially similar or related actions in the same jurisdiction arising out of the same general allegations or circumstances, be liable for the reasonable fees and expenses of more than one separate firm of attorneys for the Indemnified Parties, which firm shall be designated in writing by Chardan.

The Company agrees that it will not, without the prior written consent of Chardan, settle, compromise or consent to the entry of any judgment in any pending or threatened claim, action or proceeding in respect of which indemnification may be sought hereunder (whether or not Chardan or any other Indemnified Party is an actual or potential party to such claim, action or proceeding), unless such settlement, compromise or consent: (a) includes an unconditional release of such Chardan and each other Indemnified Party hereunder from all liability arising out of such claim, action or proceeding and (b) does not (unless otherwise consented to by Chardan) include a statement as to, or an admission of, fault, culpability or a failure to act by or on behalf of any Indemnified Person.

If Chardan or any other Indemnified Party is requested or required to appear as a witness in any action brought by or on behalf of or against the Company in which such party is not named as a defendant, the Company will reimburse Chardan for all reasonable expenses incurred in connection with such party's appearing and preparing to appear as such a witness, including, without limitation, the fees and disbursements of its legal counsel.

The provisions of this Exhibit A shall continue to apply and shall remain in full force and effect regardless of any modification or termination of the engagement or Agreement of which this Exhibit A is a part or the completion of Chardan's services thereunder.



Exhibit B
Fees and Expenses

This sets forth in general terms the fees and expenses related to Chardan's acting as M&A Advisor and Capital Markets Advisor/Placement Agent, as further specified in the Agreement of which this Exhibit "B" is a part.

M&A Fee	If a Transaction is consummated, the Company shall pay to Chardan at the closing of the Transaction in immediately available funds from the closing flow-of-funds, or in an alternative form agreeable to Chardan, aggregate M&A Fee equal to the greater of (x) U.S. \$3MM (\$3,000,000) and (y) the sum of the following amounts: • three percent (3.0%) of the first \$100 MM of Aggregate Value; • two percent (2.0%) of any amount of the Aggregate Value between \$100 MM and \$200 MM; • one percent (1.0%) of any amount of the Aggregate Value exceeding \$200 MM. The M&A Fee will be payable in immediately available funds from the closing flow-of-funds or in a form acceptable to Chardan at the closing of the Transaction.
Financing Fee	The Financing Fee will be seven percent (7%) of the aggregate amount of proceeds received from investors in the Financing of any equity or equity-linked securities and three and half percent (3.5%) of the aggregate amount of proceeds received from the Financing of any non-equity-linked debt securities and credit facilities.
Expenses	Reimbursable out-of-pocket expenses will be paid immediately upon the Company's receipt of invoice and will not exceed \$2,500 individually, or \$200,000 in aggregate, without the Company's prior written (which may be given by email) consent, including for Chardan's out-of-pocket expenses (including costs of retaining counsel) for conducting underwriters' style diligence as contemplated by Section 7(b), it being understood that such diligence-related expenses may not be incurred until a Transaction has been agreed in principal. The Company will reimburse Chardan, promptly upon receipt of an invoice for any out-of-pocket expenses incurred by Chardan and its designated affiliates.